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Democrats look to make GOP irrelevant again in California Legislature

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SACRAMENTO — Four hundred miles from the Bay Area, voters will fill three legislative seats Tuesday that were vacated by Democrats in sexual harassment scandals and decide whether to fire a Democratic state senator who voted to increase gas taxes.

The results of those races will have an immediate impact statewide.

If Democrats sweep, they would regain their supermajority — a two-thirds voting threshold that allows them to pass virtually anything without Republican backing. Those voting powers would come as thousands of bills are being decided before the legislative session ends Aug. 31.

The special elections to fill vacant seats, and the recall attempt of Sen. Josh Newman, D-Fullerton, are in addition to voters across the state selecting two candidates apiece for the November ballot for 20 state Senate and all 80 Assembly seats. The general election will decide how much relevancy each major party has until 2020.

"Democrats have been spoiled with that supermajority," said Sherry Bebitch Jeffe, a University of Southern California political science professor. "They like it. Who wouldn't like it, if you were in charge?"

The biggest threat to Democrats is the Republican-led effort to recall Newman over his vote last year to increase the gasoline tax and raise vehicle registration fees to pay for statewide road repairs. While Newman's was not the deciding vote, Republicans targeted him because they believe his Orange County seat is winnable.

Newman's victory in the 29th state Senate District two years ago was a surprise, given that the seat had long been held by Republicans and that Newman trailed badly in the top-two primary to GOP Assemblywoman Ling Ling Chang. She is now one of six candidates trying to win the seat should Newman be recalled. If he loses, the top vote-getter takes his job.

"There is a lot of money on each side," said Republican strategist Rob Stutzman. "Those voters in that district are well aware of the recall. ... There will be more Republicans that will be voting on June 5 (than in 2016), and overcoming that is difficult. These are partisan Republicans who won't be sympathetic to whether the recall is fair or not."

Also in the Senate, a special election to fill the seat of former Sen. Tony Mendoza, D-Artesia (Los Angeles County), is being closely watched, and not just because it is key for Democrats to regain their supermajority.

Mendoza resigned in February after a Senate investigation found he "more likely than not" made unwanted sexual advances toward six women, including interns in his office. He reluctantly resigned as senators moved to expel him from the body — and now he's running in simultaneous primaries, one to pick someone to finish his term and the other for a new four-year term.

"It's just really odd," said Bebitch Jeffe. "He has every right to do it. He hasn't been convicted of any crime. And he might win."

The left-leaning district is expected to produce a Democratic winner. That, and a victory by Newman, would give Senate Democrats the 27 seats needed for a supermajority for the rest of the legislative session.

Democratic leaders have for years downplayed the significance of the supermajority and have seldom used it to

freeze out Republicans completely. But the added cushion helps when vulnerable Democrats face difficult votes.

And it has come in handy at times. Assembly Democrats used their supermajority to push through the gas-tax increase with no GOP votes, for example.

"Regardless of what Democratic leaders say publicly, of course the supermajority matters," said Mindy Romero, director of the California Civic Engagement Project at UC Davis. "It matters because of the ease of getting legislation through."

Assembly Democrats lost their supermajority late last year after two members resigned amid sexual misconduct allegations — Assemblyman Matt Dababneh of Encino (Los Angeles County) and Raul Bocanegra of San Fernando Valley. Democrats would need to capture just one of those two seats to have 54 members to close the session with a two-thirds voting bloc.

Special primary elections for the seats were held in April, setting the stage for a Tuesday runoff between the top two finishers. Democrat Luz Rivas and Republican Ricardo Benitez will battle for Bocanegra's seat, while Democrat Jesse Gabriel and Republican Justin Clark vie for Dababneh's vacancy.

Both seats are in solidly Democratic districts.

In another race touched by #MeToo allegations, Assemblywoman Cristina Garcia, D-Bell Gardens (Los Angeles County), is facing a tough re-election after sexual harassment allegations forced her to take a leave this year.

An Assembly-ordered inquiry cleared Garcia of groping allegations, but she was stripped of her committee assignments after investigators found she used vulgar language in the office, asked her staff to run personal errands and disparaged other elected officials.

She returned to the Assembly last week.

Garcia is facing seven opponents, six of whom are Democrats, in the solidly blue district. The top two finishers head to the November general election.

In the Bay Area, the notable primary action is in the East Bay, where 11 Democrats are in a fundraising war to win the seat of departing Assemblyman Tony Thurmond, D-Richmond, who is running for state superintendent of public instruction.

Bill Whalen, a Hoover Institution research fellow and former speechwriter for Gov. Pete Wilson, noted that despite the stakes in Sacramento, most Assembly and Senate primary contests are quiet affairs that voters ignore. Partly it's because of an absence of unifying issues across districts, he said, but it's also partly because the drama nationally is leaving little oxygen for local politics.

"There is a big shiny object distracting us daily," Whalen said. "And more often than not, that big shiny object is Donald Trump."

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